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General Assembly

Censorship and Surveillance in the Digital Age

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Letter from the Chair

Dear delegates,

Welcome to the inaugural session of TAMS Model United Nations, held on 26 September at the Business Leadership Building at the University of North Texas. On behalf of your dais, it is our privilege to chair this committee.

This is the committee where the largest number of you will be at your first conference, so the dais will run it accordingly: we would rather have a room where everyone speaks than a room where six people give brilliant speeches. If you are nervous, raise your placard anyway. The worst thing that happens is that you say something and sit down.

The topic is one you already have opinions about. You have used a platform that removed a post. You have been asked to accept cookies. You have seen a country turn off the internet during an election, or a school block a website. What this committee asks you to do is turn those instincts into policy — and then defend that policy against a delegate whose government sees the same facts completely differently.

The core tension is not "freedom good, censorship bad." Every government on Earth restricts some speech and conducts some surveillance, and international law says they may. The question this committee exists to answer is **where the line is, who draws it, and who checks that it was drawn honestly.**

Sincerely,

Your Chair

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1. Key Terms

- **Censorship** — state action that prevents, removes, or punishes expression. Includes blocking websites, ordering platforms to delete content, licensing journalists, criminalizing speech, and shutting down networks.
- **Surveillance** — state monitoring of communications, movement, or behavior. *Targeted* surveillance follows a specific suspect; *mass* or *bulk* surveillance collects on a population and filters afterward.
- **Internet shutdown** — deliberate disruption of internet or mobile service, total or partial (often throttling, or blocking specific apps). The advocacy coalition **#KeepItOn** (Access Now) documents these annually; recent years have set successive records, with well over 200 shutdowns per year across dozens of countries, most commonly around elections, protests, and school examinations.
- **Spyware** — commercial intrusion software sold to states, capable of taking full control of a phone. **Pegasus**, sold by the Israeli firm NSO Group, was found on the devices of journalists, activists, and politicians in multiple countries following the 2021 Pegasus Project investigation.
- **Data localization** — laws requiring data about citizens to be stored inside national borders. Framed as privacy protection; also makes data reachable by domestic security services.
- **Content moderation** — platform decisions about what to remove. Not censorship in the legal sense (companies are not states) — but when a state orders it, or writes a law requiring it, the distinction gets thin.

2. What International Law Actually Says

Universal Declaration of Human Rights (1948)

- *Article 12*: no arbitrary interference with privacy or correspondence.
- *Article 19*: freedom of opinion and expression, including to seek, receive, and impart information “through any media and regardless of frontiers.”

International Covenant on Civil and Political Rights (1966) — binding on its ~173 parties.

- *Article 17*: protection against arbitrary or unlawful interference with privacy.
- *Article 19(3)*: freedom of expression carries duties and may be restricted — **but only** where the restriction meets a three-part test:
 1. **Provided by law** — a published, precise rule, not official discretion;
 2. **For a legitimate aim** — respect of others’ rights or reputations, or protection of national security, public order, public health, or morals (this list is exhaustive);
 3. **Necessary and proportionate** — the least restrictive means that achieves the aim.

Learn the three-part test. It is the single most useful thing in this guide. Almost every argument in this committee can be framed as one side saying a measure fails the test and the other side saying it passes.

Key UN instruments:

- **A/HRC/RES/20/8 (2012)** — the same rights people have offline must be protected online. The foundational statement.
- **GA Resolution 68/167 (2013)**, *The Right to Privacy in the Digital Age* — adopted by consensus after the Snowden disclosures; created the mandate that led to the **Special Rapporteur on the right to privacy** (2015).
- **A/HRC/RES/32/13 (2016)** — condemns intentional disruption of internet access. Notably *not* consensus: several states dissociated.
- **Special Rapporteur on freedom of opinion and expression** — reports on encryption and anonymity (2015), content regulation, and the surveillance industry, including a 2019 call for a **moratorium on the sale of surveillance technology** pending a human-rights-compliant framework.
- **UN Convention against Cybercrime**, adopted by the General Assembly in December 2024 after five years of negotiation. Supporters see the first global criminal-cooperation treaty for cyberspace; a large coalition of human rights organizations and technology companies warned

that its broad scope and data-sharing provisions could be used to pursue journalists and researchers across borders. Ratification and implementation are live issues and excellent material for this committee.

3. The Real-World Landscape

Network shutdowns. Governments cut access during protests (Iran, November 2019), conflicts and security operations, and — remarkably often — national exams. India has led global shutdown counts for years, largely through regionally imposed orders. Economic costs run into billions of dollars annually, and shutdowns disproportionately harm emergency services, small businesses, and anyone trying to document abuses.

National filtering systems. China's combination of technical filtering, licensing, and platform liability (the "Great Firewall") is the most developed system of its kind. Russia's 2019 "sovereign internet" law built the legal and technical basis for isolating the Russian segment and gave the regulator centralized blocking equipment. Iran has pursued a National Information Network with domestic services and the capacity to sever external connectivity.

Commercial spyware. The market sells state-grade intrusion capability to any government that can pay. Documented targets include journalists, opposition politicians, and human rights defenders in both authoritarian and democratic states. Responses have included the US Commerce Department adding NSO Group and others to the Entity List (2021), the European Parliament's PEGA committee inquiry, and a multi-state joint statement (2023) on countering commercial spyware proliferation.

Platform regulation. A wave of laws now requires companies to police content: Germany's NetzDG (2017), the EU's **Digital Services Act** (which centers risk assessment, transparency, and due process rather than takedown mandates), India's IT Rules (2021), Türkiye's 2020 social media law, and a growing set of "online safety" statutes. The recurring worry is the **collateral censorship** problem: when a company faces large fines for leaving content up and none for taking it down, it

will over-remove.

Encryption. End-to-end encryption protects journalists, dissidents, banking, and ordinary users. It also frustrates lawful investigation, and the child-safety case for access is genuine and serious. Proposals for client-side scanning or mandated access are opposed by essentially every cryptographer on the technical ground that a mechanism built for one government is available to all attackers.

AI. Cuts both ways. It powers moderation at a scale humans cannot match, and it powers facial recognition, predictive policing, and behavioral analysis at a scale surveillance states previously could not afford. Exported "safe city" systems now put that capability within reach of governments that could never have built it.

The digital divide. Roughly a third of humanity is still offline. For many delegations, "internet freedom" is a secondary issue behind connectivity, affordability, and whether the rules of the digital economy are written by countries and companies they have no say over.

4. Bloc Positions

The Freedom Online Coalition / like-minded states (much of Western Europe, US, Canada, Japan, Republic of Korea, Australia, Ghana, Costa Rica, and others). Multi-stakeholder internet governance, a global and open internet, strong encryption, limits on spyware exports, judicial authorization for surveillance. Vulnerable to the charge of hypocrisy over their own bulk collection programs and expanding online-safety laws.

Cyber-sovereignty states (China, Russian Federation, and partners in the SCO). Frame the issue as "**information security**" rather than freedom of expression: states have sovereign authority over their national information space, information itself can be a security threat, and internet governance belongs in intergovernmental bodies rather than multi-stakeholder ones. Emphasize non-interference and object to external judgments about domestic regulation.

Large democracies of the Global South (India, Brazil, Indonesia, South Africa, Nigeria, Kenya, Mexico). Genuinely cross-pressured: con-

stitutional speech protections and vigorous civil society, alongside real problems with disinformation, communal violence, and platforms that are unaccountable and foreign. Often the decisive swing votes. Brazil's Marco Civil and India's IT Rules point in opposite directions from similar starting concerns.

Group of 77 / developing states broadly. Access, affordability, capacity-building, technology transfer, and data governance that does not amount to extraction. Sympathetic to the argument that rules made in Brussels and Washington are imposed on them.

Gulf and other states with restrictive frameworks. Emphasize public morals, religious sensitivity, and social stability as legitimate aims under Article 19(3), and resist any text implying an international body may review those judgments.

5. Chronology of the Digital Rights Era

2010–11 — Egypt cuts internet nationwide during Tahrir protests. First total shutdown of a major state; five days, ~\$90m cost.

2013 — Snowden disclosures. Bulk collection revealed; triggers GA Res 68/167 by consensus.

2015 — UN Special Rapporteur report on encryption. Establishes encryption and anonymity as enablers of rights.

2016 — HRC Res 32/13. Condemns intentional disruption of internet access; not consensus.

2016–17 — Germany passes NetzDG. First large-fine platform takedown law; origin of over-removal critique.

2019 — Iran severs connectivity during November protests. Near-total national blackout amid lethal crackdown.

2019 — Russia's "sovereign internet" law. Legal + technical basis for isolating the national segment.

2021 — Pegasus Project investigation. Consortium of 17 outlets confirms spyware on phones of journalists, politicians, activists across 4 continents; NSO placed on US Entity List.

2021 — Nigeria's seven-month Twitter ban. Major democracy blocks a platform over content

moderation of its own head of state.

2022 — EU Digital Services Act. Risk-assessment and transparency model, deliberately avoiding direct takedown mandates.

2023 — Joint statement on commercial spyware by 11+ states. First coordinated export-side response.

2024 — UN Convention against Cyber-crime adopted. First global cybercrime treaty; rights groups warn of cross-border data-sharing abuse.

2025 — Shutdown count sets another record (#KeepItOn). 296 documented shutdowns in 54 countries in 2024, the worst year on record; election-period shutdowns increasingly routine.

6. Case Files

Case File 1 — India: shutdowns at democratic scale

India accounts for more documented shutdowns than any other country every year since 2018 — the majority imposed at district or state level under colonial-era Section 144 powers and the 2017 Telecom Suspension Rules. Jammu & Kashmir experienced the longest shutdown ever recorded in a democracy: 552 days of full or partial suspension beginning August 2019. In *Anuradha Bhasin v. Union of India* (2020), the Supreme Court held that indefinite suspensions are impermissible and that orders must be published and reviewed — a ruling only partially implemented. India is simultaneously a thriving digital democracy with 900+ million internet users and the source of the strongest state practice *against* the norm this committee may try to write. Its delegate cannot simply be attacked; they must be negotiated with.

Case File 2 — Pegasus and the commercial spyware market

Pegasus infects a phone with zero-click exploits — no link needs to be tapped — and exfiltrates messages, activates the microphone and camera, and defeats end-to-end encryption by reading messages after decryption on the device. Forensic work by Citizen Lab and Amnesty's Security Lab confirmed infections on devices belonging to journalists investigating corruption, opposition

figures, human rights lawyers, and persons close to murdered journalists. NSO Group maintains it sells only to vetted governments for counterterrorism. The policy problem: the exploit market is legal, lucrative, and stateless; a single vendor's tools were deployed by both democracies and autocracies; and no international instrument regulates the trade. Analogy delegates will reach for: the Wassenaar Arrangement added intrusion software in 2013 — and the amendment was so broadly drafted that security researchers were caught in it, forcing renegotiation. Export control of code is genuinely hard.

Case File 3 — The encryption dilemma in one paragraph

End-to-end encryption means the provider cannot read the message — so a lawful warrant produces nothing. Proposals to fix this (key escrow in the 1990s "Clipper chip," lawful-access mandates, client-side scanning in the EU's proposed CSAM regulation) all founder on the same technical fact: a mechanism that lets one authorized party in is a mechanism, and mechanisms are found, stolen, and abused. In 2023–24 the UK's Online Safety Act's "spy clause" was effectively shelved when Signal and WhatsApp said they would exit the market rather than comply and the government conceded no technically feasible method existed. Meanwhile the child-safety constituency's argument is not frivolous: platforms report tens of millions of CSAM instances yearly, and end-to-end encryption ends that reporting where deployed. There is no clever compromise waiting; there is a genuine values collision, and a resolution has to choose its words honestly.

7. Questions to Consider

1. Should this Assembly declare internet shutdowns categorically impermissible, or permissible only under strict, reviewable conditions?
2. What standard should govern state surveillance — prior independent (judicial) authorization, notification of targets after the fact, an independent oversight body, public statistics?
3. Should there be an international framework, moratorium, or export-control regime for commercial spyware?
4. How can states require platforms to address genuinely harmful content without creating incentives to over-remove lawful speech?
5. What should this Assembly say about encryption?
6. Who should hold governments accountable — the Human Rights Council, a Special Rapporteur, a new mechanism, national institutions — and what can a *recommendatory* body realistically ask for?
7. How is the digital divide addressed alongside digital rights, so that this resolution means something to states where most people are not yet online?
8. What safeguards should accompany implementation of the UN Convention against Cyber-crime?

8. Sources and Further Reading

- ICCPR Articles 17 and 19; **Human Rights Committee General Comment No. 34** (on Article 19) — short, readable, and the authoritative gloss on the three-part test
- GA Res 68/167; HRC Res 20/8, 32/13; OHCHR reports on privacy in the digital age
- Access Now / #KeepItOn annual shutdown report
- Freedom House, *Freedom on the Net* — country-by-country; find your country's entry
- Reports of the Special Rapporteur on freedom of opinion and expression (encryption, 2015; surveillance industry, 2019)
- Citizen Lab (University of Toronto) — the technical spyware research most of the reporting is built on
- Your country's ICCPR status and its last Universal Periodic Review — cheap, specific, and impressive in a position paper